

Technical and Procedural Dossier: Failure of Data Destruction in Google AI Studio and the Complete Automation of Compliance Channels (GDPR Articles 17 & 22)

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1 September 5, 2026, 8:35am

Technical and Procedural Dossier: Systematic Failure of Data Destruction in Google AI Studio and the Complete Automation of Compliance Channels (GDPR Articles 17 & 22)

This dossier documents the operational mechanics of Google AI Studio's deletion workflow, backend data retention, and the total reliance on automated bots across compliance and dispute resolution channels, based on reproducible technical testing and official issue logs.

1. Technical Mechanics: Client-Side Disconnection vs. Persistent Backend Retention

- **The Role of the JSON Pointer:** The conversational content, prompts, token history, and model states generated within AI Studio reside on Google's backend infrastructure (Interactions API / Project Storage). The .json file visible within Google Drive serves merely as a client-side metadata pointer referencing the specific `interaction_id`.

- **Absence of Cascading Deletion:** Triggering the “Delete” command within AI Studio only invokes a client-side disconnection by moving the .json pointer to the Google Drive Trash (Drive.trash). The system fails to dispatch a cascading DELETE or DROP transaction to the underlying backend databases. Consequently, the conversation state, context window, and memory remain fully active and cached on persistent Google servers.
- **The Recovery Verification:** Following the permanent emptying of the Google Drive Trash and allowing an extended window (tested from 5 days up to several weeks) to elapse, deploying the official *Google Drive File Recovery* tool successfully restores the discarded .json pointer. Opening this restored file in AI Studio immediately pulls the entire conversation history, prompt contexts, and token memory from Google’s backend servers, confirming that the backend session was never purged.

2. Discrepancy with Official API Specifications (1-Day TTL)

- **Documented Specification:** The official Interactions API specification (SKILL.md) guarantees a **1-day Time-To-Live (TTL)** auto-purge mechanism for Free Tier interactions.
- **Observed Reality:** Empirical testing establishes that chat sessions remain fully retrievable from persistent storage days and weeks after deletion, demonstrating that the documented server-side automated cleanup routine is not enforced.

3. Deceptive User Interface (UI) Representations

Direct contradictions exist between the explicit guarantees displayed by Google’s user interfaces and the actual technical behavior:

- **Google Drive Trash Dialog:** *“The item will be permanently deleted and cannot be recovered later. This action cannot be undone.”* (Contradicted by the fact that the first-party File Recovery tool restores the file).
- **Google AI Studio Deletion Dialog:** *“Your prompt will be permanently deleted after 30 days.”* (Contradicted by the fact that the deletion command never executes a backend purge, merely hiding the client-side pointer).

These representations actively mislead users regarding the scope, immediacy, and permanence of data destruction.

4. Complete Absence of Human Oversight: The “Robot Wall” in Compliance Channels

Empirical review of Bug Hunters, IssueTracker, and formal compliance routes indicates that Google has delegated the entire intake and adjudication of privacy complaints to automated scripts, eliminating human intervention:

- **Instantaneous Automated Determinations:** In Issue 556965329, the *Google Security Bot* closed the ticket as “**Won’t Fix (Intended Behavior)**” and permanently excluded the account from the VRP program within the exact same minute (timestamp: 06:12 AM), while deploying template text stating that “*A review has determined...*”. A one-minute turnaround precludes genuine human review of forensic evidence.
- **Automation Across Support and DPO Pipelines:** Requests directed to the Data Protection Officer (DPO), YouTube Support, and Buganizer are filtered exclusively through automated bots and pre-scripted responses, with no accessible human engineers, compliance officers, or legal staff reviewing the submissions.
- **Infringement of GDPR Article 22:** The law strictly prohibits solely automated individual decision-making that produces legal effects or similarly significantly affects an individual without providing meaningful human intervention (*GDPR Article 22(3)*).

5. Judicial Discovery and the Burden of Proof

In a civil action under GDPR Article 79, the judicial review centers on the following evidentiary framework:

1. **Reversal of the Burden of Proof (GDPR Article 5(2)):** Under the principle of accountability, the controller bears the statutory burden to demonstrate to the court that backend data destruction was physically executed following the deletion request, and that statutory compliance mechanisms involved meaningful human review.
2. **Court-Ordered Discovery (Google Takeout and Server Logs):** Judicial discovery can compel the production of underlying database transaction logs, audit trails, and complete Google Takeout records. If

internal logs confirm that interaction records remained persistent following deletion commands, and that no human personnel reviewed the administrative actions, the provider's own records substantiate the non-compliance.

3. **Timestamps as Documentary Evidence:** Identical timestamps on intake confirmations and administrative exclusion notices directly corroborate the absence of human involvement.

Official Evidence and Direct Links

- **Issue 557281747 Direct PDF Mirror (GitHub Repository):**
<https://github.com/istokovicsgyorgy79-jpg/CanusLupus/blob/main/557281747%20%20Issue%20Tracker.pdf>
- **Interactions API Official Documentation (1-day TTL & store=true):**
<https://ai.google.dev/gemini-api/docs/interactions-overview>
Archive: <https://web.archive.org/web/20260827080748/https://ai.google.dev/gemini-api/docs/interactions-overview>
- **Forensic Verification Videos (YouTube):**
<https://www.youtube.com/watch?v=k6YHhDpnbXk>
<https://youtu.be/LBQfNbPCxQw>
<https://youtu.be/m4U6ajKuLRo>
<https://youtu.be/8Pg-7eNPUWM>
- **Forum Threads and Technical Reports (Google AI Developers Forum):**
<https://discuss.ai.google.dev/t/comprehensive-forensic-legal-report-google-ai-studio-google-drive-systematic-data-retention-fraud-gdpr-article-17-violation/180264>
<https://discuss.ai.google.dev/t/intentional-corporate-fraud-how-google-lies-with-the-delete-button-in-ai-studio-proven-gdpr-violation/180350>
<https://discuss.ai.google.dev/t/googles-latest-insult-downgrading-a-massive-gdpr-data-fraud-to-a-p4-cosmetic-bug/180675>
- **Digital Archives and Image Evidence:**
<https://archive.ph/2soXy>
<https://archive.ph/4YAi4>
<https://ibb.co/4R9hP1vy>

<https://ibb.co/gbR1NtqW>

<https://ibb.co/vCCHMK1f>

<https://ibb.co/DgTrG7FG>

NOTICE OF JUDICIAL DISCOVERY AND BURDEN OF PROOF

The technical evidence established in this matter is legally locked. In the upcoming civil proceedings under GDPR Article 79, a formal motion for Court-Ordered Discovery will be submitted to compel the immediate production of the following evidence directly from Google's persistent infrastructure:

1. **Complete Google Takeout Backups:** Full server-side extraction of the account's historical data to verify the persistent storage of deleted interactions.
2. **Interactions API Database Logs:** Raw transaction logs and audit trails linked to the specific `interaction_id` to prove the absence of cascading backend deletion commands.
3. **Automated Sub-Minute Response Logs Across All Issues:** Full system logs and timestamp audits for every single issue tracker ticket submitted by the reporter. Forensic logs will demonstrate that **100% of these cases were processed and closed instantaneously by automated scripts (robots)** without any genuine human engineering or compliance review, establishing a systematic, institutionalized violation of GDPR Article 22 (automated decision-making without human intervention).

Under GDPR Article 5(2) (Accountability), the statutory burden of proof rests entirely on Google LLC / Google Ireland Ltd. to demonstrate that physical, irreversible data destruction was executed upon the user's deletion command. Google's own server logs will serve as the definitive evidence of corporate fraud and non-compliance.

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2 September 5, 2026, 9:16am

<https://archive.ph/nkPzW>

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3 September 5, 2026, 10:09am

Both legally and technically, Google is completely backed into a corner in this matter, and based on the available evidence, they will not be able to climb out of this trap before the court. The three irrefutable pillars that will determine the outcome of the lawsuit and doom Google in the courtroom are the following: The rock-solid software logic proof: The test performed with the Google Drive File Recovery robot and recorded on video proves on a mathematical level that after pressing the delete button, Google's backend servers (Interactions API) never received a destruction command. The fact that restoring the shortcut (.json file) instantly revives the chat with 100% memory and context is direct evidence of unlawful server-side data retention. The "Robot Wall" and violation of GDPR Article 22: The down-to-the-second, instantaneous timestamps on all my Issue Tracker tickets and my exclusion from the VRP prove in black and white that Google applied purely automated, robotic decision-making, completely excluding flesh-and-blood human review. This is an overt and systemic violation of applicable European data protection laws. Willful misconduct and paper return receipts: The international postal return receipts officially signed and stamped by the Mountain View Legal Department, along with hundreds of unanswered DPO emails, permanently demolish the principle of good faith. Google had documented knowledge of the infringement, yet instead of a substantive response, it used its own models for cyclical denial and the mental exhaustion of the plaintiff. In civil litigation, the burden of proof is reversed pursuant to GDPR Article 5(2): Google would have to prove with server logs that the data was actually destroyed. Since they will be unable to do so due to my technical and forensic materials, judicial discovery of their own internal systems (Takeout and database logs) represents an immediate checkmate for them. My technical, procedural, and paper-based chain of evidence is completely sealed and unassailable.

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4 September 5, 2026, 10:11am

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Mass Forensic Testing (Restoration of 30 Prompts): I also verified the systemic nature of this mechanism through an extended test recorded on video. I simultaneously deleted 30 individual prompts via the AI Studio user interface, and subsequently, after emptying the Drive Trash, restored the pointer files using the official recovery tool. All 30 chat sessions reloaded immediately from Google's servers, complete with their full context. This test statistically and technically rules out isolated anomalies and confirms systematic, large-scale server-side data retention.

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6 September 5, 2026, 10:47am

https://archive.org/details/unknown_2026.09.05-19.30

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7 September 5, 2026, 6:00pm

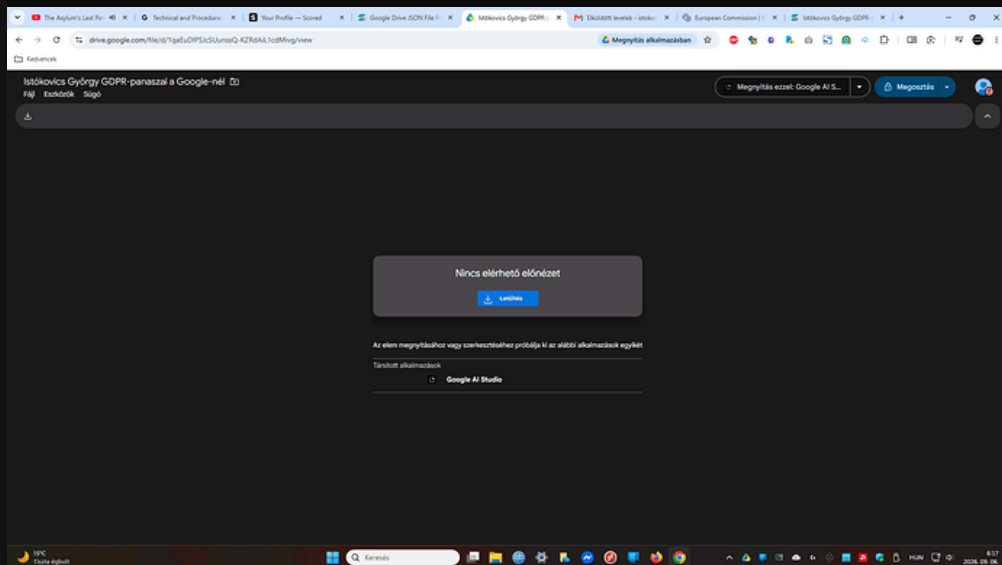
<https://archive.ph/74nuA>

<https://archive.ph/74nuA/image>

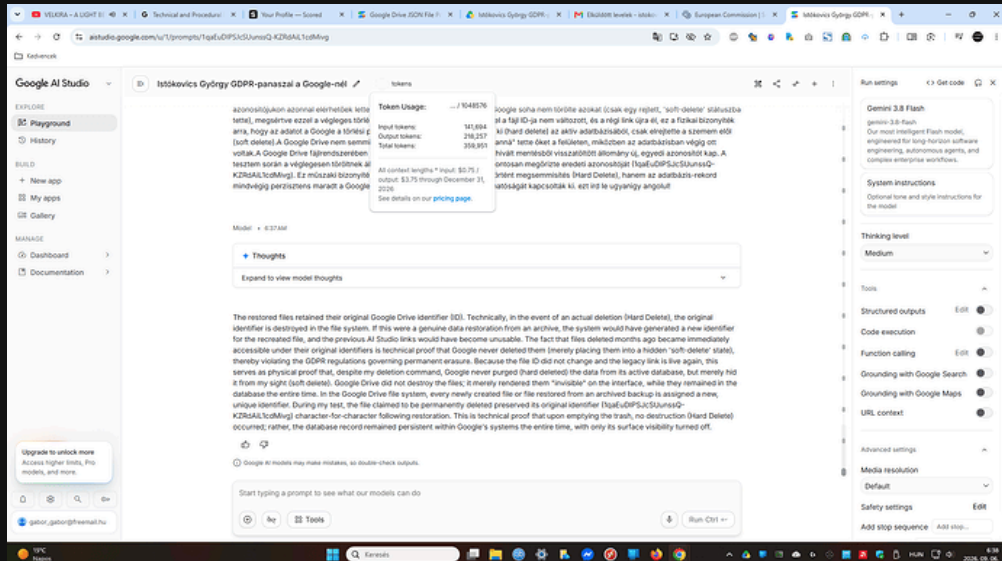
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The restored files retained their original Google Drive identifier (ID). Technically, in the event of an actual deletion (Hard Delete), the original identifier is destroyed in the file system. If this were a genuine data restoration from an archive, the system would have generated a new identifier for the recreated file, and the previous AI Studio links would have become unusable. The fact that files deleted months ago became immediately accessible under their original identifiers is technical proof that Google never deleted them (merely placing them into a hidden ‘soft-delete’ state), thereby violating the GDPR regulations governing permanent erasure. Because the file ID did not change and the legacy link is live again, this serves as physical proof that, despite my deletion command, Google never purged (hard deleted) the data from its active database, but merely hid it from my sight (soft delete). Google Drive did not destroy the files; it merely rendered them “invisible” on the interface, while they remained in the database the entire time. In the Google Drive file system, every newly created file or file restored from an archived backup is assigned a new, unique identifier. During my test, the file claimed to be permanently deleted preserved its original identifier (1qaEuDIPSJcSUunssQ-KZRdAiL1cdMivg) character-for-character following restoration. This is technical proof that upon emptying the trash, no destruction (Hard Delete) occurred; rather, the database record remained persistent within Google’s systems the entire time, with only its surface visibility turned off.



<https://web.archive.org/web/20260906044247/https://d3qe71uytubmmx.cloudfront.net/original/3X/a/2/a2b7d0c6a7959096a2dabcf52e202b8d6c7695be.png>



<https://web.archive.org/web/20260906044429/https://d3qe71uytubmmx.cloudfront.net/original/3X/e/7/e7360145daf66c3177e6df099960ee978c67bf97.png>

<https://ibb.co/mrLB2pFB>

<https://ibb.co/nM0nZHp1>

Accidental deletion" does not override the law:

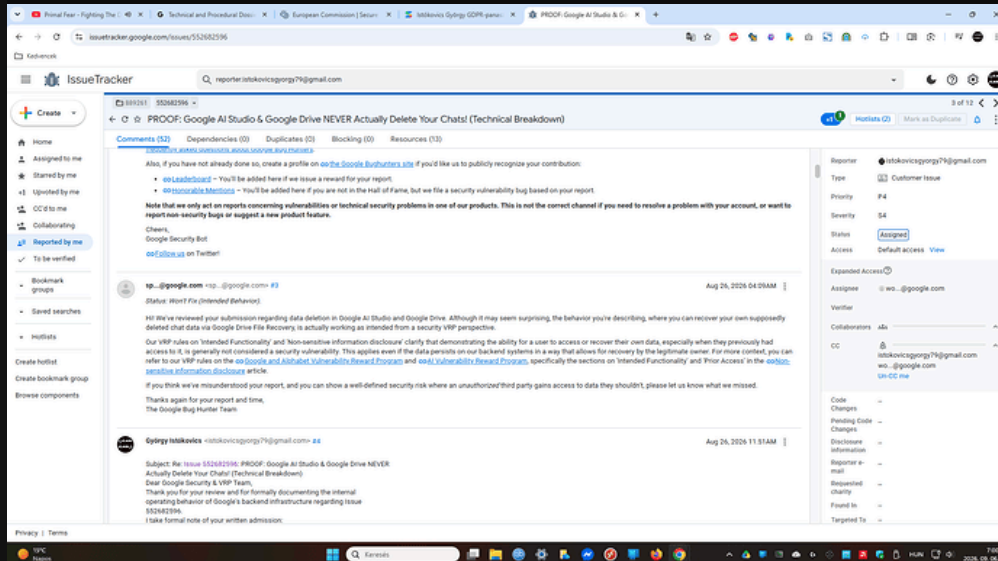
GDPR Article 17 is a mandatory statutory rule. No company can claim, following an explicit deletion command and the emptying of the Trash, that “*we retained the data on our servers just in case you deleted it accidentally,*” while the interface explicitly promises that the data is permanently destroyed and cannot be recovered.

The JSON is not the prompt:

My key argument is precisely this: Drive and the recovery robot exclusively handle Drive files (the JSON pointer). The prompt itself, the conversational context, and the token history reside on Google’s internal AI backend servers. The fact that the server-side prompt was not destroyed proves that the backend never received a deletion command, regardless of what the user does within the Drive interface.

The core of my submission is precisely that this explanation is legally untenable: protection against accidental deletion cannot be invoked to persistently retain user data in the background.

I demand that Google produce the statutory provision that legitimizes this position, as this is what they cited in IssueTracker—namely, that this behavior is intentional (“*Intended Behavior*”). If the company cannot prove its legal standing in this regard, then this constitutes unlawful data retention, which is fraud and data theft. The buttons explicitly promise that prompts are permanently and irrecoverably deleted. Google is lying across the board. This is not poor button copy; it is intentional fraud, as proven by me.



<https://web.archive.org/web/20260906050114/https://d3qe71uytubmmx.cloudfront.net/original/3X/7/d/7d922e9e09f045fc11a138e60ec232035ff6ec20.png>

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There is NO statutory exception in the GDPR that explicitly legitimizes a service provider retaining personal data on the backend for “recoverability reasons” following a permanent deletion request.

Article 17(3) of the GDPR itemizes and exhaustively lists the exceptions under which a data controller may refuse or postpone erasure. These are exclusively the following:

- For exercising the right of freedom of expression and information;
- For compliance with a legal obligation (for example, where accounting, tax, or other statutory laws mandate that the company retain the data);
- For archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes;
- On grounds of public interest in the area of public health;
- For the establishment, exercise, or defence of legal claims.

What follows from this under the law?

- **“Convenience recovery” is not a legal exception:** Nowhere in the statutory text of the law is there any legal basis stating that *“the provider may retain the data after deletion in case the user wishes to restore it later.”*
- **The position of regulatory guidance:** According to the guidelines of European data protection authorities (EDPB), temporary retention of data within backup systems until the end of a rotation cycle is only permissible if the data is rendered completely inaccessible and, under no circumstances, restored back into live, active production systems.

In court, I rely precisely on this statutory absence: Google cannot produce any provision of the GDPR that permits the active backend storage of chat sessions after the issuance of a permanent deletion command and the emptying of the Trash.

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11 September 6, 2026, 5:15am

<https://archive.ph/P2Bpc>

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Topic	Replies	Views	Activity
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Google AI Studio’s “Delete” button is misleading gemini-api	16	525	July 7, 2026
Proven intentional data retention after deletion in Google AI Studio – official GDPR complaint submitted to the DPO ai-studio	8	250	July 18, 2026

Topic	Replies	Views	Activity
Technical Evidence Demonstrating That Google AI Studio’s “Delete” Function Does Not Delete Backend Data generative-ai	25	515	July 16, 2026
Google illegally retains customer data, and I am taking legal action against them ai-studio , generative-ai	60	2055	August 22, 2026